

25SMCV06385 25SMCV06385

County: los-angeles

Division: Civil Law and Motion

Department: 207

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Case Number: 25SMCV06385 Hearing Date: September 17, 2026 Dept: 207

TENTATIVE

RULING

DEPARTMENT

207

HEARING DATE

September

17, 2026

CASE NUMBER

25SMCV06385

MOTION

Motion

for Summary Judgment/Summary Adjudication

MOVING PARTIES

Plaintiff Korn Ferry

OPPOSING PARTY

Defendant

Jelena Tasker

MOVING PAPERS:

Notice

of Motion and Motion for Summary Judgment/Summary Adjudication; Memorandum
of Points and Authorities

Compendium
of Evidence

Declaration
of Ron Johnson

Separate
Statement of Undisputed Material Facts

Declaration
of Jonathan A. Loeb

OPPOSITION PAPERS:

Opposition to Motion for Summary
Judgment/Summary Adjudication

Declaration of Jelena Tasker

Compendium of Evidence

Separate Statement in Opposition

REPLY PAPERS:

Reply
in Support of Motion for Summary Judgment/Summary Adjudication

Evidentiary
Objections

BACKGROUND

This case arises from a dispute concerning an outstanding debt. On December 4, 2025, Plaintiff Korn Ferry ("Plaintiff") filed suit against Defendant Jelena Tasker ("Defendant") alleging three causes of action for breaches of three separate promissory notes.

Plaintiff now moves for summary judgment, or in the alternative summary adjudication of the following issues:

1. Plaintiff's First Cause of Action for Breach

of the 2022 Promissory Note: Korn Ferry is entitled to summary adjudication because it has come forward with admissible evidence of each element of its cause of action for breach of promissory note, demonstrating that Korn Ferry is entitled to judgment on this cause of action in the amount of \$40,000, plus pre-judgment interest at 7.75% per annum (compounded annually) from November 7, 2025, through the date of entry of judgment, and reasonable attorneys' fees and costs, and Tasker cannot come forward with a triable issue as to any material fact.

2. Plaintiff's Second Cause of Action for Breach

of the 2023 Promissory Note: Korn Ferry is entitled to summary adjudication because admissible evidence is presented in support of this motion on each element of its cause of action for breach of promissory note, demonstrating that Korn Ferry is entitled to judgment on this cause of action in the amount of \$45,000, plus prejudgment interest at 7.75% per annum (compounded annually) from November 7, 2025, through the date of entry of judgment, and reasonable attorneys' fees and costs.

3. Plaintiff's Third Cause of Action for Breach

of the 2025 Promissory Note: Korn Ferry is entitled to summary adjudication because admissible evidence is presented on each element of its cause of action for breach of promissory note, demonstrating that Korn Ferry is entitled to judgment on this cause of action in the amount of \$50,000, plus pre-judgment interest at 7.75% per annum (compounded annually) from November 7, 2025, through the date of entry of judgment, and reasonable attorneys' fees and costs.

4. Tasker's First Affirmative Defense

(Unconscionability under Civil Code section 1670.5): 2 The affirmative defense lacks merit because the undisputed material facts establish that, as a matter of law, Tasker cannot demonstrate either procedural or substantive unconscionability with respect to any of the three Notes, and Korn Ferry is

therefore entitled to summary adjudication.

5. Tasker's Second Affirmative Defense

(California Wage Law / Labor Code section 221): The affirmative defense lacks merit because the undisputed material facts establish that the principal advances under the Notes were conditional loans, not "earned wages," and Labor Code section 221 does not bar Korn Ferry's recovery, and Korn Ferry is therefore entitled to summary adjudication.

6. Tasker's Third Affirmative Defense (Business

and Professions Code section 16600 et seq.): The affirmative defense lacks merit because the undisputed material facts establish that the Notes do not restrain Tasker from engaging in any lawful profession, trade, or business, and Business and Professions Code section 16600 does not apply to ordinary repayment obligations of conditional advances, and Korn Ferry is therefore entitled to summary adjudication.

7. Tasker's Fourth Affirmative Defense (Assembly

Bill 692 / Business and Professions Code section 16608): The affirmative defense lacks merit because AB 692 and Business and Professions Code section 16608 apply, by their own terms, only to contracts entered into on or after January 1, 2026, and each of the three Notes was entered into before that date, and Korn Ferry is therefore entitled to summary adjudication.

Defendant opposes the motion and
Plaintiff replies.

EVIDENTIARY OBJECTIONS

The

Court rules as follows with respect to Plaintiff's Evidentiary Objections:

1. Sustained – relevance

2. Sustained – relevance

3. Sustained

4. Sustained

5. Sustained

6. Sustained

7. Sustained

8. Sustained

9. Sustained

10. Sustained as to "satisfied that condition and"
Overruled otherwise

11. Overruled

12. Overruled

13. Overruled

14. Overruled

15. Sustained

16. Overruled

17. Overruled

18. Overruled

19. Sustained

20. Sustained

21. Sustained

22. Sustained

23. Sustained

24. Sustained

25. Sustained

26. Sustained

27. Sustained

28. Sustained

29. Sustained

30. Sustained

31. Sustained

32. Sustained

LEGAL STANDARDS – MOTION FOR SUMMARY JUDGMENT/ADJUDICATION

“[T]he party moving for summary judgment bears the burden of persuasion that there is no triable issue of material fact and that he is entitled to judgment as a matter of law[.]

There is a triable issue of material fact if, and only if, the evidence would allow a reasonable trier of fact to find the underlying fact in favor of the party opposing the motion in accordance with the applicable standard of proof.”

¿(Aguilar v. Atlantic Richfield Co. (2001) 25 Cal.4th 826, 850

(hereafter Aguilar).) ¿“[T]he party moving for summary judgment bears an initial burden of production to make a prima facie showing of the nonexistence of any triable issue of material fact; if he carries his burden of production, he causes a shift, and the opposing party is then subjected to a burden of production of his own to make a prima facie showing of the existence of a triable issue of material fact.” ¿(Ibid.; Smith v. Wells Fargo Bank, N.A. (2005) 135 Cal.App.4th 1463, 1474 [summary judgment standards held by Aguilar apply to summary adjudication motions].)

Further, “the trial court may not weigh the evidence in the manner of a factfinder to determine whose version is more likely true. Nor may the trial court grant summary judgment based on the court’s evaluation of credibility.” (Aguilar, supra, 25 Cal.4th. at p. 840

[cleaned up]; see also Weiss v. People ex rel. Department of Transportation (2020) 9 Cal.5th 840, 864 [“Courts deciding motions for summary judgment or summary adjudication may not weigh the evidence but must instead view it in the light most favorable to the opposing party and draw all reasonable inferences in favor of that party”].)

A party may move for

summary adjudication as to one or more causes of action, affirmative defenses, claims for damages, or issues of duty if that party contends that there is no merit to the cause of action, defense, or claim for damages, or if the party contends that there is no duty owed. (See Code Civ. Proc., § 437c, subd. (f)(1).) “A motion for summary adjudication shall be granted only if it completely disposes of a cause of action, an affirmative defense, a claim for damages, or an issue of duty.” (Ibid.) A cause of action has no merit if: (1) one or more elements of the cause of action cannot be separately established, even if that element is separately pleaded, or (2) a defendant establishes an affirmative defense to that cause of action.

(See Code Civ. Proc., §

437c, subd. (n); Union Bank v. Superior

Court (1995) 31 Cal.App.4th 573, 583.)

Once the defendant has shown that a cause of action has no merit, the burden shifts to the plaintiff to show that a triable issue of material fact

exists as to that cause of action. (See Code Civ. Proc., § 437c, subd. (o)(2); Union Bank v. Superior Court, supra, 31 Cal.App.4th at p.

583.) Additionally, in line with Aguilar,

“[o]n a motion for summary adjudication, the trial court has no discretion to exercise. If a triable issue of material fact exists as to the challenged causes of action, the motion must be denied. If there is no triable issue of fact, the motion must be granted.” (Fisherman's Wharf Bay Cruise Corp. v. Superior Court (2003) 114 Cal.App.4th 309, 320.)

DISCUSSION

1. ISSUES 1-3 THE PROMISSORY NOTES

a. Plaintiff's Evidence

In support of the motion,

Plaintiff advances the Declaration of Ron Johnson, Plaintiff's Senior Vice President and Chief Financial Officer, which provides:

8. A true

and correct copy of the 2022 Note, executed by Tasker on October 17, 2022, and dated October 15, 2022, in favor of Korn Ferry in the principal amount of \$100,000, is attached as Exhibit 3 to the Compendium of Evidence. The \$100,000 advance under the 2022 Note was paid to Tasker as a sign-on bonus in connection with the commencement of her employment with Korn Ferry. Korn Ferry advanced the \$100,000 principal under the 2022 Note to Tasker during the pay period of October 16-31, 2022, through Korn Ferry's payroll system. Korn Ferry disbursed the advance through payroll and withheld applicable federal, state, and payroll taxes at the time of disbursement, consistent with Korn Ferry's standard treatment of wage advances paid through payroll. A true and correct copy of Tasker's paystub reflecting the disbursement of the 2022 Note advance is attached as Exhibit 4 to the Compendium of Evidence.

9. A true

and correct copy of the 2023 Note, executed by Tasker on July 16, 2023, and dated July 12, 2023, in favor of Korn Ferry in the principal amount of \$75,000, is attached as Exhibit 5 to the Compendium of Evidence. The \$75,000 advance under the 2023 Note was paid to Tasker as an unearned portion of FY23 bonus; because Tasker had been employed by Korn Ferry for only approximately six months at the time the advance was disbursed, she had not yet earned any portion of that amount through continued service. Korn Ferry advanced the \$75,000 principal under the 2023 Note to Tasker during the pay period of July 16-31, 2023, through Korn Ferry's payroll system. As with the 2022 Note advance, Korn Ferry disbursed the advance through payroll and withheld applicable federal, state, and payroll taxes at the time of disbursement, consistent with Korn Ferry's standard treatment of wage advances paid through payroll. A true and correct copy of Tasker's paystub reflecting the disbursement of the 2023 Note advance is attached as Exhibit 6 to the Compendium of Evidence.

10. A

true and correct copy of the 2025 Note, executed by Tasker on July 16, 2025, and dated July 9, 2025, in favor of Korn Ferry in the principal amount of \$50,000, is attached as Exhibit 7 to the Compendium of Evidence. The \$50,000 advance under the 2025 Note was offered to Tasker as a long-term cash incentive intended to encourage her continued employment with Korn Ferry, which she accepted. Korn Ferry advanced the \$50,000 principal under the 2025 Note to Tasker during the pay period of July 16-31, 2025, through Korn Ferry's payroll system. As with the 2022 and 2023 Note advances, Korn Ferry disbursed the advance through payroll and withheld applicable federal, state, and payroll taxes at

the time of disbursement, consistent with Korn Ferry's standard treatment of wage advances paid through payroll. A true and correct copy of Tasker's paystub reflecting the disbursement of the 2025 Note advance is attached as Exhibit 8 to the Compendium of Evidence.

11. Under

each Note, the advanced principal is earned by Tasker through continued service to Korn Ferry over a defined service period, with stated portions of the advance earned upon her continued employment through specified dates. Korn Ferry's records reflect that none of the events that would have caused additional portions of the advances to be earned, or that would have excused repayment of the unearned portions, occurred prior to November 7, 2025: Tasker did not die, did not become permanently disabled, was not terminated by Korn Ferry without cause, and no change in control of Korn Ferry occurred prior to that date.

12. Based

on Tasker's period of continued service through her voluntary resignation effective November 7, 2025, the portions of each advance that Tasker had earned, and the unearned principal balances remaining due as of November 7, 2025, are as follows: (a) under the 2022 Note, Tasker had earned 3/5 of the \$100,000 advance, leaving 2/5, or \$40,000, unearned and due; (b) under the 2023 Note, Tasker had earned 2/5 of the \$75,000 advance, leaving 3/5, or \$45,000, unearned and due; and (c) under the 2025 Note, Tasker had earned none of the \$50,000 advance, leaving 100%, or \$50,000, unearned and due, for a total unearned principal of \$135,000. Tasker has paid nothing toward the unearned principal due under any of the three Notes.

15. On

November 24, 2025, Korn Ferry, through its representative Samantha Goodman, sent Tasker a written demand for repayment of the unearned principal under each of the three Notes based on Tasker's voluntary resignation effective November 7, 2025 (the KF Demand). A true and correct copy of the KF Demand is attached as Exhibit 10 to the Compendium of Evidence. I am familiar with the KF Demand because I reviewed it in Korn Ferry's records maintained in the regular course of business.

16. Later

that same day, on November 24, 2025, Tasker responded to the KF Demand by email. In her response, Tasker stated, among other things, that she had no

intent to make this payment and instructed Korn Ferry to proceed with the legal action. A true and correct copy of Tasker's November 24, 2025 email response is attached as Exhibit 11 to the Compendium of Evidence.

(Johnson Decl. ¶¶ 8-16 and Exs. 3-11.)

Thus,

Plaintiff has met its initial prima facie burdens of production and persuasion to demonstrate part of the advanced wages are owed, pursuant to the terms of the three promissory notes.

b. Defendant's Evidence

In opposition, Defendant argues that the promissory notes were not ordinary loans, but rather salary advances, earned incrementally by continued employment, and because they were contingent upon Plaintiff's continued employment, they are somehow not valid and enforceable repayment obligations as a matter of law.

But Defendant does not cite any legal authority standing for the proposition that salary advances contingent upon continued employment are somehow not valid and enforceable repayment obligations. In fact, Defendant cites to *Steinhebel v. Los Angeles Times Communications, LLC* (2005) 126 Cal.App.4th 696, 704, which held that an employer may legally advance commissions to its employees prior to the completion of all conditions for payment and, by agreement, charge back any excess advance over commissions earned against any future advance should the conditions not be satisfied without violating Labor Code section 221's prohibition on employers collecting from an employee any part of wages already paid to an employee.

Defendant also argues there are triable issues of material fact as to whether the subjects of the second and third promissory notes constitute wages already earned or contingent advancements because the promissory notes conflict with the language of Defendant's offer letter.

Specifically, with respect to the second promissory note, Defendant points to the language of the employment offer, which characterizes the FY23 \$75,000 amount as a "guaranteed incentive

award.” But the offer letter itself explains:

“This guaranteed amount will be secured by a promissory note which will be forgiven in five equal instalments on each of the first, second, third, fourth and fifth anniversaries of the payment date, provided that on each such date you remain in active, full-time employment with Korn Ferry. In order to be eligible for this guaranteed incentive award, you must maintain your full-time active employment in good standing through the July 31, 2023 payment date.”

Defendant seizes on the language “In order to be eligible for this guaranteed incentive award, you must maintain your full-time active employment in good standing through the July 31, 2023 payment date” to argue that because she maintained her employment through July 31, 2023, she is guaranteed entitlement to the full \$75,000 amount. The Court disagrees. In context, it is clear from the terms of the promissory note, as articulated in the offer letter itself, that Defendant was guaranteed the first \$15,000 portion of the \$75,000 amount after maintaining employment through July 31, 2023, and that Defendant would earn an additional \$15,000 annually in five equal installments, fully earning the entire \$75,000 on her fifth anniversary.

As for the third promissory note, Defendant argues that Plaintiff informed Defendant she had earned a \$100,000 annual incentive award based upon her completed performance, but refused to pay Defendant her \$100,000 earned incentive award outright unless Defendant agreed to sign a promissory note with respect to \$50,000 on a multi-year arrangement.

In support, Defendant advances her own declaration, which provides:

28. On or about July 1, 2025, I participated in my annual performance review with my reporting manager, David Wise. At that time, the performance period associated with my FY25 annual incentive compensation had concluded. My FY25 Performance Review dated July 1, 2025 is included as Defendant's Exhibit J.

29.

During that performance review, Mr. Wise informed me that, based on my performance that fiscal year, I had earned an annual bonus of \$100,000. My contemporaneous FY25 Individual Performance Dashboard reflected my performance metrics for that fiscal year. Screenshots of that dashboard taken on April 30, 2025 are included as Defendant's Exhibit K.

30.

During the same conversation, I was informed for the first time that Korn Ferry would not pay the portion of my earned bonus exceeding \$50,000 to me as ordinary cash compensation.

31. I was

presented with two alternatives for the remaining \$50,000: a promissory-note arrangement or a deferred-compensation arrangement subject to a five-year vesting period. In my July 7, 2025 email to Mr. Wise, I confirmed that I would proceed with the promissory-note option, noting that he had "marked me already" for that option. Mr. Wise responded, "that's the same thing I'd have done." A true and correct copy of that exchange is included as Defendant's Exhibit L. Mr. Wise subsequently referred in writing to the separate "non-prom note portion" and "prom note portion" of the bonus payment in his July 11, 2025 email to me, included as Defendant's Exhibit M.

32. I

requested that Korn Ferry pay my full \$100,000 annual bonus in cash without an additional repayment, vesting, or continued-employment condition. That option was not made available to me.

35. After

Korn Ferry declined to pay the remaining \$50,000 as ordinary cash compensation and limited the available alternatives to the promissory-note or deferred-compensation structures, I executed the document identified in this action as the 2025 Note, which Plaintiff submitted as Exhibit 7 to Plaintiff's Compendium of Evidence.

(Tasker Decl. ¶¶ 28-32, 35.)

The

documents attached as Exhibits J through M do not characterize the \$100,000 as an annual bonus. Rather, Defendant's own declaration demonstrates that in the conversation where Mr. Wise offered

Defendant the additional compensation, he informed Defendant that \$50,000 would be payable outright, and \$50,000 would either be payable on a deferred compensation structure or pursuant to a promissory note.

Thus,
even if Mr. Wise initially verbally mischaracterized the \$100,000 as consisting entirely of an annual bonus, in the same meeting, he corrected himself that \$50,000 is an earned bonus and the other \$50,000 is an incentive bonus, to be earned over the course of years.

Further,
Defendant's declaration demonstrates that Defendant was offered the choice of receiving the additional \$50,000 payment either over time or up front and pursuant to a promissory note, and Defendant chose to execute the promissory note, affirmatively agreeing in writing that it was to be earned over time and repaid if Defendant's employment did not last throughout the repayment period. If Defendant believed she was entitled to the entirety of the \$100,000, she could have demanded payment and sued Plaintiff without signing a promissory note to the contrary.

For the same reason, because
Defendant did have a choice in whether to receive the payments up front pursuant to a promissory note or whether to receive the payments as earned, the agreements are not procedurally unconscionable.

Defendant
further argues that the Notes violate California's public policy against restraining employee mobility. But
Defendant does not cite to any binding authority standing for the proposition that advanced bonuses contingent upon continued employment are unlawful.

Thus,
Defendant has not met her burden of production to create any triable issues of material fact that the promissory notes are not valid and binding.

2. INTEREST & ATTORNEY FEES

The Notes provide that amounts
become due and payable upon Defendant's voluntary resignation of employment and that any sum payable but not paid when due shall bear interest at the lesser of

(a) the reference rate of Bank of America plus 0.75 percent as of the applicable due date and (b) 10%.

Plaintiff advances the Johnson Declaration which provides:

13. Korn

Ferry maintains records of the applicable Bank of America reference rate. As of November 7, 2025, the Bank of America reference rate was 7.00%, which when added to the 0.75% margin yields a contract rate of 7.75% per annum, compounded annually. A true and correct copy of Korn Ferry's record reflecting the applicable Bank of America reference rate as of November 7, 2025 is attached as Exhibit 9 to the Compendium of Evidence. On the \$135,000 aggregate principal, that rate equates to \$10,462.50 per year, or \$28.66 per day, accruing through the date of judgment, subject to annual compounding.

(Johnson Decl. ¶ 13.)

Plaintiff

has demonstrated entitlement to prejudgment interest on the outstanding \$135,000 principal balance from Defendant's November 7, 2025 voluntary resignation date. The Notes also provide that Defendant shall pay reasonable attorneys' fees and costs incurred in enforcing the Notes. Thus, Plaintiff has demonstrated entitlement to reasonable attorneys' fees and costs incurred in this enforcement action. And more important, Defendant has not proffered evidence to establish triable issues of material fact regarding the interest and attorneys' fees that may be owed based on the breach of the promissory notes.

CONCLUSION AND ORDER

Finding Plaintiff has met its initial prima facie burdens of production and persuasion to demonstrate that the Notes are valid, binding, and enforceable, and Defendant has not met her burden of production to create any triable issues of material fact, the Court grants Plaintiff's motion for summary judgment.

Further, pursuant to the terms of the Notes, Plaintiff is entitled to prejudgment interest at a rate of 7.75% from the November 7, 2025 resignation

date and reasonable attorneys' fees and costs.

Further, in light of the Court's ruling, the Court vacates the Final Status Conference and Non-Jury Trial, and sets an Order to Show Cause re Entry of Judgment on October 16, 2026 at 8:30 A.M. in Department 207. If the Judgment is entered before October 16, 2026, the Court will discharge the Order to Show Cause and no appearance will be necessary.

Further, the Court will enter the proposed Order lodged on June 25, 2026 in conformity with the ruling, and orders Plaintiff to lodge a proposed Judgment on or before September 28, 2026.

Plaintiff shall provide notice of the Court's ruling/Order, and file the notice with a proof of service forthwith.

DATED: September 17, 2026 _____/s/ _____

Michael
E. Whitaker

Judge
of the Superior Court